Montgomery County District Court

Cause No. 2024-CV-0026

Brenda Christian, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	8-13-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant answers Plaintiff's Original Petition by generally denying each and every allegation contained in it, and Defendant demands strict proof of those allegations by the standard required under the Texas Rules of Civil Procedure.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses.

First, the collision described in the Petition involved a low rate of speed and resulted in minimal property damage. Plaintiff cannot establish that the impact was sufficient to cause the claimed injuries, and any injuries alleged were caused by pre-existing conditions or by later events unrelated to this collision.

Second, Plaintiff's recovery, if any, must be reduced by the percentage of responsibility attributable to Plaintiff under Chapter 33 of the Texas Civil Practice and Remedies Code, including any negligence of Plaintiff that proximately caused the occurrence.

Third, Plaintiff failed to mitigate damages by not following reasonable medical advice and by delaying treatment, and any recovery must be reduced accordingly.

Defendant reserves the right to amend this answer as discovery proceeds.